



# **The Township of Teaneck Bergen County**

## **Housing Element and Fair Share Plan Round Four (2025-2035)**

Prepared For:



818 Teaneck Road  
Teaneck, NJ 07666

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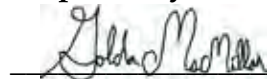
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*The original of this report was signed and sealed in accordance with N.J.S.A. 45:14A-12.*

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## I. 2026 Amendment

**2026 Amendment:** Content that has been replaced or is no longer applicable is shown in ~~strikethrough~~. New or revised content is indicated in *green italics*.

*This Housing Element and Fair Share Plan (“HEFSP”) was adopted by the Planning Board on June 16, 2025, and subsequently submitted to the Affordable Housing Dispute Resolution Program (the “Program”).*

*On August 27-28, 2025, multiple interested parties filed challenges to the Township’s HEFSP pursuant to N.J.S.A. 52:27D-304.1(f)(2)(b), including 143 State Street LLC, Hill Street Realty LLC, 54 West Englewood Ave LLC, Mohammed Saddiqulla, Vision 23 LLC, and the Fair Share Housing Center (“FSHC”). The Township and all parties thereafter agreed to resolve the issues raised in the challenges through Settlement Agreements<sup>1</sup>. These agreements were submitted to the Program and referred to the Mount Laurel judge in accordance with N.J.S.A. 52:27D-304.1(f)(2)(b) and Administrative Directive #14-24. As a result of these settlements, the Township received Fourth Round compliance certification.*

*In its final decision, the Court ordered that, for consistency purposes, the Township’s HEFSP be amended to incorporate additional property identified in the Settlement Agreements, specifically 822 Palisade Avenue. Accordingly, this Amendment is required to implement the terms of those agreements.*

*This Amendment is limited to the following scope:*

- 1. (Required in the settlement agreements): Inclusion of 822 Palisade Avenue in the Township’s Fourth Round strategy.*
- 2. (Required in the settlement agreements): Updates to “remaining” undeveloped Round Three projects to reflect increasing the mandatory affordable housing set-aside from 15% to 20%.*
- 3. (Technical clarification since 2025 HEFSP): Update the 54 West Englewood project to include Block 4905, Lots 1 and 2 (previously only Lot 3 was identified).*
- 4. (Technical clarification since 2025 HEFSP): Updates to the appendices to incorporate newly adopted ordinances and supporting documents that were previously included as draft placeholders.*

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<sup>1</sup> BER-L-000776-25

## II. Introduction

This Housing Element and Fair Share Plan will exhibit the Township of Teaneck's (herein the "Township" or "Teaneck") commitment to providing affordable housing within the municipality. This document seeks to frame Teaneck's efforts based on the current best knowledge of the affordable housing framework created by the State, applicable past rules established by the Council on Affordable Housing (COAH), and the requirements of P.L.2024, c.2<sup>2</sup> (the "Law" or "Amended Law") which governs municipal responsibilities concerning provisions of affordable housing in the Fourth Round.

This Plan has three sections. The first section ("Introduction") includes a brief history of New Jersey Housing Policy. The second section ("Housing Element") includes a Demographic Analysis, Housing Inventory, Employment Analysis, and review of land uses and policies, as required by statute. The third section (Fair Share Plan) summarizes the Township's affordable housing obligations for 2025-2035 and its plan for complying with these obligations.

### A. History of New Jersey Affordable Housing Policy

#### 1975 – 1985 | Mount Laurel Doctrine and the Fair Housing Act

In 1975 the New Jersey Supreme Court decided *Southern Burlington County NAACP v. the Township of Mount Laurel*, more commonly referred to as "Mount Laurel I," wherein it interpreted the New Jersey Constitution to create an affirmative obligation for developing municipalities to provide a "realistic opportunity for the construction of low- and moderate-income housing in their communities." In 1983, the New Jersey Supreme Court expanded the obligation from only developing municipalities to all municipalities in a decision commonly referred to as "Mount Laurel II." In addition, the Supreme Court required the establishment of each municipality's fair share obligation and required each municipality, through its zoning, to provide a realistic opportunity for the construction of that established fair share obligation. Subject to several prerequisites, conditions and requirements, Mount Laurel II also created the "builder's remedy" as a mechanism to enforce the doctrine in instances where a developer successfully demonstrated a municipality's zoning failed to create the requisite realistic opportunity. Under such circumstances, a plaintiff may be entitled to have its site rezoned for an inclusionary development with an affordable set aside if the site is available, developable, approvable, and suitable for the proposed project and all other requirements for a successful builder's remedy are met and all defenses defeated.

In 1985, in response to Mount Laurel II and the flood of litigation stemming from it, the Legislature adopted the Fair Housing Act ("FHA") to discourage litigation and incentivize voluntary compliance (see N.J.S.A. 52-27D-303). The FHA established, among other things, the Council on Affordable Housing ("COAH") as an administrative alternative to litigation and

<sup>2</sup> [https://pub.njleg.state.nj.us/Bills/2024/PL24/2\\_.PDF](https://pub.njleg.state.nj.us/Bills/2024/PL24/2_.PDF)



judicial intervention. COAH was charged with establishing various housing regions in the state, estimating regional affordable housing obligations, and adopting criteria and guidelines for the municipal determination of housing need as well as guidelines for satisfying those obligations. The FHA also linked municipal planning and zoning powers to the satisfaction of affordable housing obligations. Under the FHA, a municipal zoning ordinance is presumptively invalid if a municipality fails to adopt a housing element as part of its master plan or enacts zoning regulations that are inconsistent with their housing plan.

#### 1987 – 2004 | Establishment and Administration of First Round and Second Round COAH Rules

After the adoption of the Fair Housing Act, COAH adopted procedural and substantive rules to effectuate the FHA's legislative intent in both the First Round (1987-1993) (N.J.A.C 5:91 and 5:92) and Second Round (1993-1999) (N.J.A.C. 5:93). The Second Round substantive regulations (Chapter 93) superseded the First Round substantive regulations (Chapter 92) and recalculated the First Round obligations. Under COAH's regulations, low-income households were defined as those with incomes no greater than 50 percent of the area median income (AMI), adjusted for household size, and moderate-income households were those with incomes no greater than 80 percent and no less than 50 percent of the median household income. AMI limits were calculated based upon housing regions as established by COAH.

#### 2004 – 2010 | Third Round Litigation and Revisions

In December 2004, COAH promulgated its Third Round "Growth Share" methodology, which adjusted prior round obligations and devised a new system for projecting future municipal housing obligations. Growth Share obligations were based upon municipal growth and the Third Round was defined as the period of 1999-2014. The initial Growth Share methodology required municipalities to provide one affordable housing unit for every eight market rate units and one affordable unit for every 25 jobs created. In January 2007, the Appellate Division invalidated the Growth Share Methodology and required COAH to revise its rules, which it did in May 2008 via the Third Round substantive regulations of Chapter 97.

The FHA was subsequently amended in July 2008. This round of amendments, among other things, eliminated Regional Contribution Agreements and reduced non-residential development fees. In September 2008, Executive Order #114 was which amended the COAH rules to ensure consistency with the Highlands Regional Master Plan.

#### 2010 – 2023 | COAH's Noncompliance and Resumption of Court Responsibility

During this period, there was inaction and increased uncertainty in the realm of affordable housing.

After taking office Governor Chris Christie signed Executive Order No. 12, establishing the Housing Opportunity Task Force and charging them with a full review of the Fair Housing Act, COAH, and COAH's regulatory structure. Ultimately, the task force recommended a model which included adjusted definitions of present and prospective need, a benchmark of 10 percent

growth predicted by the State Planning Commission to guide obligations, and transferring of procedural responsibility from COAH to the Home Mortgage Finance Agency (HMFA).

Further complicating matters, in October 2010, the Appellate Division invalidated a substantial portion of COAH's rules. Most notably, the Court invalidated the Third Round Growth Share methodology and ordered COAH to revise its rules in accordance with the decision. In addition, the Court prohibited certification of housing plans that rely upon municipally sponsored affordable housing projects without specified funding and required COAH to create an incentive structure for inclusionary developments.

In January 2011, the legislature passed S-1 / A-3447, which was subsequently vetoed. Then, in June Governor Christie issued a reorganization plan which transferred the administration of the State's affordable housing program from COAH to the New Jersey Department of Community Affairs. Upon challenge by the Fair Share Housing Center, the Appellate Court invalidated Governor Christie's Reorganization Plan in March 2012. The Supreme Court upheld this decision in July 2013.

In September 2013, the Supreme Court confirmed the invalidation of the previously adopted Third Round regulations, upholding that the methodology used for projecting housing needs in these rules was unconstitutional. In that ruling, the court established a February 2014 deadline for development and adoption of new COAH rules, which was eventually extended to November 2014. Significantly, no rules were adopted.

In March 2015, in the case entitled *In re: Adoption of N.J.A.C. 5:96 & 5:97*, 221 N.J. 1 (2015), more commonly referred to as "Mount Laurel IV" the State Supreme Court determined that COAH was "moribund" and unable to carry out its duties as intended by the Fair Housing Act. The Court further held "that the courts may resume their role as the forum of first instance for evaluating municipal compliance with Mount Laurel obligations."

Thus, the Court designed a transitional process whereby municipalities could seek judicial approval of their HEFSPs. Those transitional procedures gave municipalities the choice whether to seek compliance voluntarily via a Declaratory Judgment (DJ) Action or to not file a DJ Action and risk being sued. During this period, and in the absence of COAH, many municipalities entered into court-mediated Settlement Agreements involving the Fair Share Housing Center.

#### 2024 – Present | Adoption of P.L.2024, c.2 and Fourth Round Methodology Changes and Department of Community Affairs

With the impending end of the Third Round in 2025, there was a push at the State level to implement new legislation that would reorganize the affordable housing process and end the transitional and court-oriented process initiated by Mount Laurel IV. The result of this effort was A-4 / S-50, which was signed into law by Governor Phil Murphy on March 20, 2024. This legislation created a framework to be used for the Fourth Round and beyond. In summary, the Law:



1. Abolishes the Council on Affordable Housing ("COAH") and transfers its duties to the DCA and the Administrative Office of the Courts ("AOC");
2. Enables the DCA to implement the judicial methodology provided by Judge Mary C. Jacobson, A.J.S.C. in her March 8, 2018 decision, *In re Application of Municipality of Princeton* (the "Princeton Case"), to calculate every municipality's affordable housing obligation for the Fourth Round;
3. Creates the Affordable Housing Dispute Resolution Program (the "Program") to oversee disputes and provide for mediation; and
4. Expands the availability of bonus credits, while eliminating the previously offered "rental bonus credit." Bonus credits are further described in this Housing Element and Fair Share Plan.
5. Modifies applicable data and calculations underlying the methodology for calculation of affordable housing obligations, eliminating the prior dependence of Courts and court-appointed Special Masters to deploy accepted methodologies to determine each municipality's affordable housing obligation.
6. Sets timeframes under which municipalities must act to preserve immunity from exclusionary zoning litigation.

Critically, the Amended Law requires that municipalities adopt a housing element and fair share plan no later than June 30, 2025 to maintain immunity from exclusionary zoning litigation.

## **B. Housing Plan Requirements**

### *Municipal Land Use Law ("MLUL") + Fair Housing Act ("FHA")*

The MLUL, through incorporation of the New Jersey FHA, requires municipalities to include a housing element in their master plans as a prerequisite to the zoning power. The principal purpose is to enumerate and provide the data, policies, and methods by which municipalities will meet housing needs, with particular attention to low- and moderate-income households.

Pursuant to Section 10 of P.L.1985, c.222 (C.52:27D-310) and as amended per Bill P.L.2024, c.2,<sup>3</sup> as amended, the required contents of the housing element shall contain at least:

- a. *An inventory of the municipality's housing stock by age, condition, purchase or rental value, occupancy characteristics, and type, including the number of units affordable to low- and moderate-income households and substandard housing capable of being rehabilitated, and in conducting this inventory the municipality shall have access, on a confidential basis for the sole purpose of conducting the inventory, to all necessary property tax assessment records and information in the assessor's office, including but not limited to the property record cards;*

<sup>3</sup> [https://pub.njleg.state.nj.us/Bills/2024/PL24/2\\_.PDF](https://pub.njleg.state.nj.us/Bills/2024/PL24/2_.PDF)

- b. *A projection of the municipality's housing stock, including the probable future construction of low- and moderate-income housing, for the next ten years, taking into account, but not necessarily limited to, construction permits issued, approvals of applications for development and probable residential development of lands;*
- c. *An analysis of the municipality's demographic characteristics, including but not necessarily limited to, household size, income level and age;*
- d. *An analysis of the existing and probable future employment characteristics of the municipality;*
- e. *A determination of the municipality's present and prospective fair share for low- and moderate-income housing and its capacity to accommodate its present and prospective housing needs, including its fair share for low- and moderate-income housing, as established pursuant to section 3 of P.L.2024, c.2 (C.52:27D-304.1);*
- f. *A consideration of the lands that are most appropriate for construction of low- and moderate-income housing and of the existing structures most appropriate for conversion to, or rehabilitation for, low- and moderate-income housing, including a consideration of lands of developers who have expressed a commitment to provide low- and moderate-income housing; and*
- g. *An analysis of the extent to which municipal ordinances and other local factors advance or detract from the goal of preserving multigenerational family continuity as expressed in the recommendations of the Multigenerational Family Housing Continuity Commission, adopted pursuant to paragraph (1) of subsection f. of section 1 of P.L.2021, c.273 (C.52:27D-329.20).*
- h. *For a municipality located within the jurisdiction of the Highlands Water Protection and Planning Council, established pursuant to section 4 of P.L.2004, c.120 (C.13:20-4), an analysis of compliance of the housing element with the Highlands Regional Master Plan of lands in the Highlands Preservation Area, and lands in the Highlands Planning Area for Highlands-conforming municipalities. This analysis shall include consideration of the municipality's most recent Highlands Municipal Build Out Report, consideration of opportunities for redevelopment of existing developed lands into inclusionary or 100 percent affordable housing, or both, and opportunities for 100 percent affordable housing in both the Highlands Planning Area and Highlands Preservation Area that are consistent with the Highlands regional master plan; and*
- i. *An analysis of consistency with the State Development and Redevelopment Plan, including water, wastewater, stormwater, and multi-modal transportation based on guidance and technical assistance from the State Planning Commission.*

In addition to the statutory components of the Housing Element and Fair Share Plan detailed in 52:27D-310, [Administrative Directive #14-24](#),<sup>4</sup> which promulgated the procedures and guidelines for implementing the Affordable Housing Dispute Resolution Program; contains a

<sup>4</sup> [https://www.njcourts.gov/sites/default/files/administrative-directives/2024/12/dir\\_14\\_24.pdf](https://www.njcourts.gov/sites/default/files/administrative-directives/2024/12/dir_14_24.pdf)

section entitled “Required Elements of Housing Element and Fair Share Plan.” In summary, the Directive requires four additional elements of the HEFSP to be included:

1. A site suitability analysis for any inclusionary zone and/or 100% affordable site
2. A concept plan for site development of any proposed inclusionary zone.
3. A detailed review of the credit worthiness of all existing units in the municipality
4. All ordinances and resolutions required to implement the plan attached as an Appendix to the HEFSP.

However, it should be noted that the requirement to adopt all implementing ordinances to effectuate the HEFSP as set forth in the Fair Housing Act is March 15, 2026. Given this discrepancy of the dates, the statutory necessity of implementing ordinances to be reviewed by the Planning Board and deemed consistent with this adopted HEFSP, and the potential for challenges to the HEFSP as adopted, such ordinance amendments will be prepared following adoption of this plan element.

### III. Housing Element: Municipal Summary

Teaneck Township is roughly 6.24 square miles in area and is in Bergen County. For regional and planning purposes, Teaneck Township is located in Housing Region 1, a region that consists of Bergen, Hudson, Passaic and Sussex counties.

In compiling the analysis for the Housing Element, this report utilizes the following data:

1. American Community Survey ("ACS"): The most up to date information is the ACS estimates, which are generated between the decennial censuses. ACS figures are based on data collected over a 5-year time period. The estimates represent the average characteristics of population and housing between 2018-2023 and DO NOT represent a single point in time. Comparisons will be made with the 2018-2023 ACS to show change over time. See URL link<sup>5</sup> utilized in this HEFSP.
2. Decennial Census: Every ten years, the Census conducts detailed data collection to create an image that is as accurate as possible of the conditions throughout the country in that year. Data from the decennial census is used for comparison when equivalent ACS information is unavailable, as well as for longitudinal analysis. See URL link<sup>6</sup> utilized in this HEFSP.
3. North Jersey Transportation Planning Authority ("NJTPA"): Every four years, the NJTPA updates its regional forecasts for population, households and employment as part of updating its long-range transportation plan (LRTP), the region's blueprint for transportation investment. See URL link<sup>7</sup> utilized in this HEFSP.
4. State or Other Agency Sources: for select data types, State sources are used instead of the Census Bureau when equivalent Census data does not exist or the State data provides a more complete picture.

#### A. Housing Conditions

The analysis in this section shall satisfy Part A of P.L.1985, c.222 (C.52:27D-310), which requires:

- A) *"Inventory of housing stock by age, condition, purchase or rental value, occupancy characteristics, and type, including the number of units affordable to low- and moderate-income households and substandard housing capable of being rehabilitated, and in conducting this inventory the municipality shall have access, on a confidential basis for the sole purpose of conducting the inventory, to all necessary property tax assessment records and information in the assessor's office, including but not limited to the property record cards"*

<sup>5</sup><https://data.census.gov/table>

<sup>6</sup><https://data.census.gov/table?d=DEC%20Demographic%20Profile>

<sup>7</sup><https://www.njtpa.org/NJTPA/media/Documents/Planning/Plans-Guidance/Planning%20for%202050/draft%20final/E-2050-Demographic-Forecasts.pdf>

### Housing Stock by Age and Condition

According to the 2023 ACS, there are an estimated 13,851 housing units in Teaneck Township which represented a 155 unit decrease since 2018 (14,006 units).

77.6% of Teaneck Township's housing structures were built prior to 1960, suggesting that almost 3 out of 4 units are older than 65 years.

**Table 1: Year Structure Built**

|                       | UNITS  | PERCENT |
|-----------------------|--------|---------|
| Total housing units   | 13,851 |         |
| Built 2020 or later   | 0*     | 0.0*    |
| Built 2010 to 2019    | 365    | 2.6     |
| Built 2000 to 2009    | 294    | 2.1     |
| Built 1990 to 1999    | 364    | 2.6     |
| Built 1980 to 1989    | 671    | 4.8     |
| Built 1970 to 1979    | 267    | 1.9     |
| Built 1960 to 1969    | 1,141  | 8.2     |
| Built 1950 to 1959    | 3,741  | 27.0    |
| Built 1940 to 1949    | 2,190  | 15.8    |
| Built 1939 or earlier | 4,818  | 34.8    |

Source: American Community Survey [2023](#)

[DCA Reporter](#) was reviewed to verify number of COs issued during the 2020-2023 period to further analyze the "zero" structures built ACS data. A total of 395 COs were issued.

The table below details the condition of housing within Teaneck Township based on heating fuel, plumbing facilities, kitchen facilities. These factors help determine the number of inadequate housing units within the Township. According to the current ACS estimate, 320 housing units in Teaneck Township lacked either heating fuel, plumbing or kitchen facilities, which is more than 2018.

**Table 2: Housing Condition**

|                                      | 2023 | PERCENT | 2018 | PERCENT | PERCENT CHANGE |
|--------------------------------------|------|---------|------|---------|----------------|
| Total                                | 320  | 2.3     | 133  | 1       | 1.3            |
| Lacking heating fuel                 | 127  | 0.9     | 72   | 0.5     | 0.4            |
| Lacking complete plumbing facilities | 57   | 0.40    | 21   | 0.2     | 0.2            |
| Lacking complete kitchen facilities  | 136  | 1.00    | 40   | 0.3     | 0.7            |

Source: American Community Survey [2023](#) and [2018](#)

### Housing Values and Costs

Since 2018, home values in the Township have increased by \$99,900 (25.2%). This change is accompanied by an increase in homes worth between \$ 500,000 and \$499,999 and a decrease in homes worth between \$200,000 and \$299,000.

**Table 3: Value for Owner-Occupied Housing Units**

|                                                                                        | 2023      | PERCENT | 2018      | PERCENT | PERCENT CHANGE |
|----------------------------------------------------------------------------------------|-----------|---------|-----------|---------|----------------|
| <b>Total Owner-occupied units</b>                                                      | 10,307    | -       | 9,840     | -       | 4.74           |
| <b>Less than \$50,000</b>                                                              | 253       | 2.5     | 73        | 0.7     | 1.8            |
| <b>\$50,000 to \$99,999</b>                                                            | 101       | 1.0     | 46        | 0.5     | 0.5            |
| <b>\$100,000 to \$149,999</b>                                                          | 58        | 0.6     | 48        | 0.5     | 0.1            |
| <b>\$150,000 to \$199,999</b>                                                          | 147       | 1.4     | 233       | 2.4     | -1             |
| <b>\$200,000 to \$299,999</b>                                                          | 500       | 4.9     | 1,012     | 10.3    | -5.4           |
| <b>\$300,000 to \$499,999</b>                                                          | 4,191     | 40.7    | 6,120     | 62.2    | -21.5          |
| <b>\$500,000 to \$999,999</b>                                                          | 4,168     | 40.4    | 1,855     | 18.9    | 21.5           |
| <b>\$1,000,000 or more</b>                                                             | 889       | 8.6     | 453       | 4.6     | 4              |
| <b>Median (dollars)</b>                                                                | \$496,400 | -       | \$396,500 | -       | 25.2           |
| <i>Source: American Community Survey <a href="#">2023</a> and <a href="#">2018</a></i> |           |         |           |         |                |

The table below shows the housing expenditures for those who own and rent in Teaneck. The general affordability standard is that no more than 30% of gross income should be allocated for housing costs.

A cost burden is the ratio of housing costs to household income. For renters, housing cost is the gross rent (lease rent plus utilities). For owners, housing cost is the monthly owner costs, which may include mortgage, utilities, association fees, insurance, and real estate taxes.

**Table 4: Housing Cost Burden  
Monthly Costs as Percentage of Household Income)**

| RANGES                                                        | OWNER       |         |              |         | RENTER |         |
|---------------------------------------------------------------|-------------|---------|--------------|---------|--------|---------|
|                                                               | W/ MORTGAGE |         | W/O MORTGAGE |         | TOTAL  | PERCENT |
|                                                               | TOTAL       | PERCENT | TOTAL        | PERCENT |        |         |
| Less than 20.0 percent                                        | 2,399       | 37.2    | 2,610        | 67.8    | 3,307  | 27.4    |
| 20.0 to 24.9 percent                                          | 1,278       | 19.8    | 165          | 4.30    | 281    | 16.5    |
| 25.0 to 29.9 percent                                          | 433         | 6.7     | 223          | 5.80    | 466    | 12.8    |
| 30.0 to 34.9 percent                                          | 507         | 7.9     | 66           | 1.70    | 361    | 9.4     |
| 35.0 percent or more                                          | 1,836       | 28.5    | 783          | 20.40   | 264    | 33.9    |
| Not computed                                                  | 0           | (X)     | 7            | (X)     | 955    | (X)     |
| <i>Source: American Community Survey <a href="#">2023</a></i> |             |         |              |         |        |         |



### Occupancy Characteristics and Type of Housing

As of 2023, the Township is predominately comprised of owner-occupied households, which comprise 76.9% of the Township's households. A total of 23.1% of households are renters, and 3.2% of the Township's housing units are vacant. Since 2018, the Township has seen a shift towards owner-occupied households, coming from a 3.1% decrease in renters and a 1.6% increase in the Township's vacancy rate.

**Table 5: Housing Tenure and Occupancy**

|                                                                                                                                                                                                                                                                                                     | 2023   | PERCENT | 2018   | PERCENT | PERCENT CHANGE |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|---------|--------|---------|----------------|
| <b>Total</b>                                                                                                                                                                                                                                                                                        | 13,851 |         | 14,006 |         |                |
| <b>Owner Occupied</b>                                                                                                                                                                                                                                                                               | 10,307 | 76.9*   | 9,840  | 73.8**  | 3.1            |
| <b>Renter Occupied</b>                                                                                                                                                                                                                                                                              | 3,099  | 23.1*   | 3,490  | 26.2**  | -3.1           |
| <b>Vacant Units</b>                                                                                                                                                                                                                                                                                 | 445    | 3.2     | 676    | 4.8     | -1.6           |
| <p><i>Source: American Community Survey <a href="#">2023</a> and <a href="#">2018</a>; and <a href="#">County</a></i></p> <p>*Compared to 65.4% owner-occupied and 34.6% in Bergen County (353,307 units)</p> <p>** Compared to 64.4% owner-occupied and 35.6% in Bergen County (338,249 units)</p> |        |         |        |         |                |

Housing units with more than one occupant per room are considered overcrowded. Overcrowded households in the Township rose 1% since 2018.

**Table 6: Occupants Per Room + Inadequate Units in Occupied Housing Units**

| OCCUPANTS PER ROOM                                                                            | 2023   | PERCENT | 2018   | PERCENT |
|-----------------------------------------------------------------------------------------------|--------|---------|--------|---------|
| <b>Total</b>                                                                                  | 13,406 |         | 13,330 |         |
| <b>1.00 or less</b>                                                                           | 12,924 | 96.4    | 12,984 | 97.4    |
| <b>1.01 to 1.50</b>                                                                           | 338    | 2.5     | 231    | 1.7     |
| <b>1.51 or more</b>                                                                           | 144    | 1.1     | 115    | 0.9     |
| <p><i>Source: American Community Survey <a href="#">2023</a> and <a href="#">2018</a></i></p> |        |         |        |         |

Since 2018, the share of Township's single-family housing stock decreased from 14,006 units to 13,851 units.

**Table 7: Housing Type and Size**

| HOUSING UNITS              | 2023   | PERCENT | 2018   | PERCENT | PERCENT CHANGE |
|----------------------------|--------|---------|--------|---------|----------------|
| <b>Total housing units</b> | 13,851 |         | 14,006 |         |                |
| <b>1-unit, detached</b>    | 10,219 | 73.8    | 10,188 | 72.7    | 1.1            |

|                                                                                 |     |     |     |     |      |
|---------------------------------------------------------------------------------|-----|-----|-----|-----|------|
| 1-unit, attached                                                                | 430 | 3.1 | 464 | 3.3 | -0.2 |
| 2 units                                                                         | 683 | 4.9 | 696 | 5.0 | -0.1 |
| 3 or 4 units                                                                    | 277 | 2.0 | 518 | 3.7 | -1.7 |
| 5 to 9 units                                                                    | 862 | 6.2 | 868 | 6.2 | 0    |
| 10 to 19 units                                                                  | 332 | 2.4 | 498 | 3.6 | -1.2 |
| 20 or more units                                                                | 981 | 7.1 | 752 | 5.4 | 1.7  |
| Mobile home                                                                     | 67  | 0.5 | 22  | 0.2 | 0.3  |
| Boat, RV, van, etc.                                                             | 0   | 0.0 | 0   | 0.0 | 0    |
| Source: American Community Survey <a href="#">2023</a> and <a href="#">2018</a> |     |     |     |     |      |

Since 2018, the bedroom typology of Township's has remained the same in "family" sized 3+ bedroom type (70.1%) in 2023.

**Table 8: Number of Bedrooms Per Unit**

| ROOMS                                                                           | 2023 TOTAL | PERCENT | 2018 TOTAL | PERCENT | PERCENT CHANGE |
|---------------------------------------------------------------------------------|------------|---------|------------|---------|----------------|
| Total                                                                           | 13,851     |         | 14,006     |         |                |
| No Bedroom                                                                      | 227        | 1.6     | 199        | 1.4     | 0.2            |
| 1 Bedroom                                                                       | 1,164      | 8.4     | 1,436      | 10.3    | -1.9           |
| 2 Bedrooms                                                                      | 2,736      | 19.8    | 2,557      | 18.3    | 1.5            |
| 3 Bedrooms                                                                      | 5,198      | 37.5    | 5,904      | 42.2    | -4.7           |
| 4 Bedrooms                                                                      | 3,317      | 23.9    | 2,734      | 19.5    | 4.4            |
| 5 or more Bedrooms                                                              | 1,209      | 8.7     | 1,176      | 8.4     | 0.3            |
| Source: American Community Survey <a href="#">2023</a> and <a href="#">2018</a> |            |         |            |         |                |

### Existing Low- and Moderate-Income Housing Units

Teaneck reviewed all property tax assessment records and information in the assessor's office, including but not limited to the property record cards, to determine the number of existing low- and moderate-income housing units. Based on this review, there are 351LMI units in the Township of Teaneck. The Township is following the applicable requirements regarding unit monitoring and reporting.

## **B. Housing Projections**

The analysis in this section shall satisfy Part B of P.L.1985, c.222 (C.52:27D-310), which requires:

- B) "A projection of the municipality's housing stock, including the probable future construction of low- and moderate-income housing, for the next ten years, taking into account, but not necessarily

*limited to, construction permits issued, approvals of applications for development and probable residential development of lands."*

### Projection of Housing Stock

Below is a general prediction by NJTPA of Teaneck Township's household population growth to 15,461 households in 2050. This increase in 1,960 households would require available units to accommodate and may be a prediction indicator of new projected housing stock.

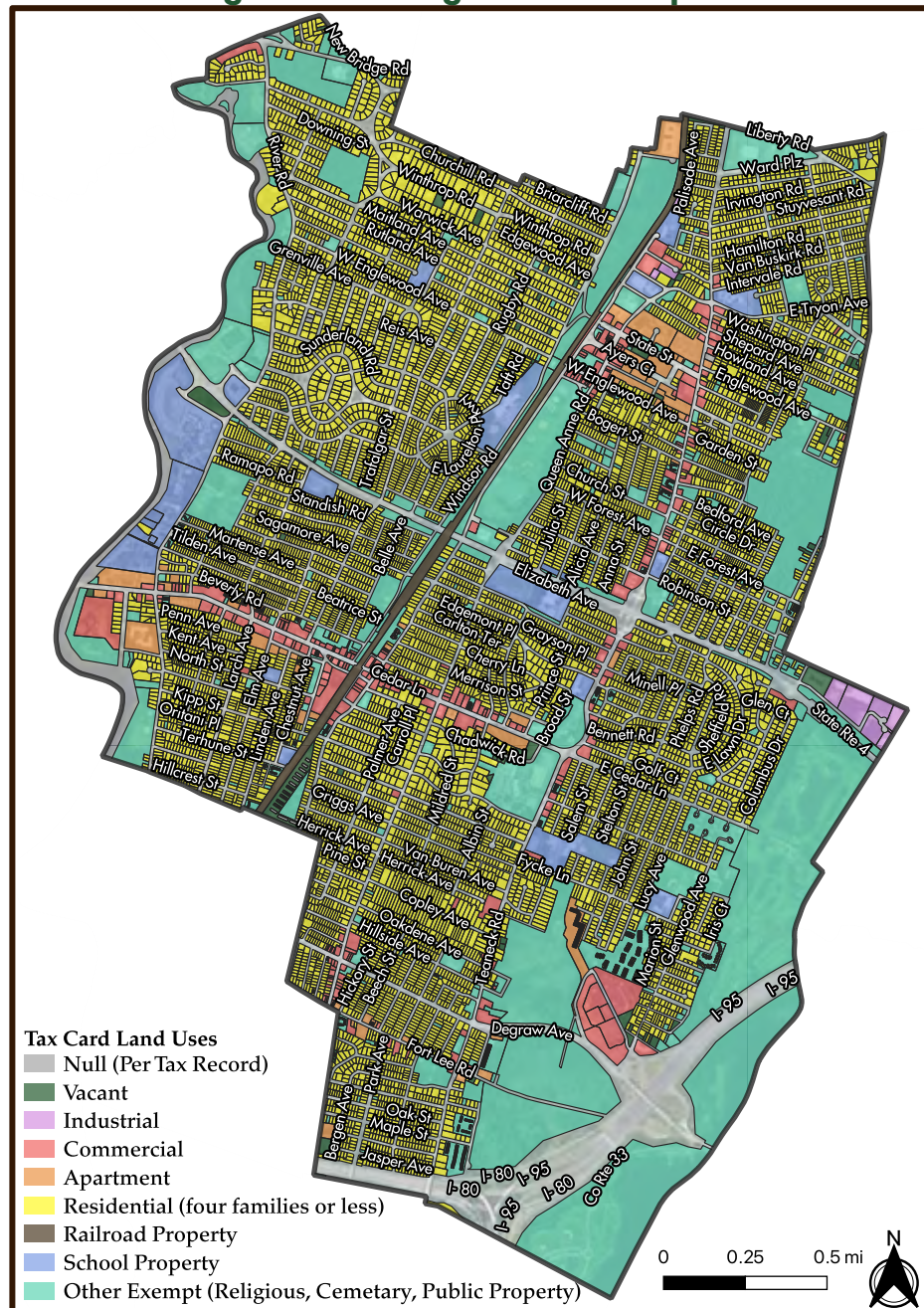
**Table 9: Housing Unit Projection**

| YEAR                                                                     | POPULATION | ANNUALIZED % CHANGE |
|--------------------------------------------------------------------------|------------|---------------------|
| 2015                                                                     | 13,501     | -                   |
| 2050 (Predicted)                                                         | 15,461     | 0.4%                |
| Source: <a href="#">NJTPA, "Appendix E - 2050 Demographic Forecasts"</a> |            |                     |

Zoning regulations and existing capital infrastructure may help determine where growth is expected and where new housing units are likely to be developed in the future.

Teaneck Township expects new developments to bear the cost that such development puts upon the existing infrastructure, including its sewer and water systems, road infrastructure, school facilities, and emergency services. This includes the addition of capacity necessitated by the new development, as well as associated maintenance costs. New development should not be a burden on the Township's infrastructure.

**Figure 1: Existing Land Use Map**

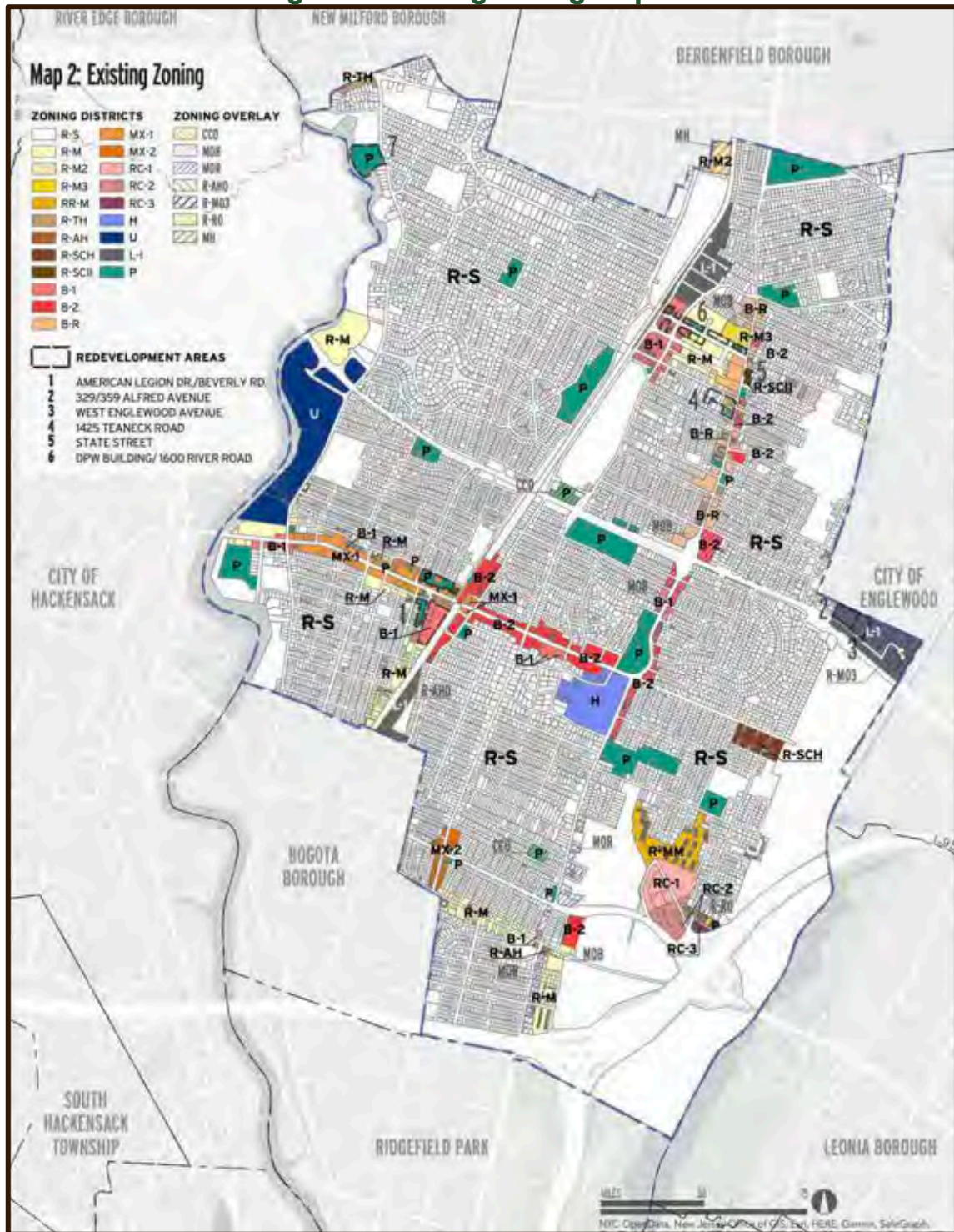


*Teaneck Township Land Use Map<sup>8</sup>*

<sup>8</sup> Map Note: Classifications are based on assessor records. "Vacant land" as depicted on this map should not be construed to limit or supersede any conclusions made in the Vacant Land Adjustments.



**Figure 2: Existing Zoning Map**



Teaneck Township [Master Plan](#) (Page 27)

### C. Demographic Characteristics

The analysis in this section shall satisfy Part C of P.L.1985, c.222 (C.52:27D-310), which requires:

- C) "An analysis of the municipality's demographic characteristics, including but not necessarily limited to, household size, income level and age."

#### Population General

The population estimate for Teaneck Township in 2023 was 41,126 which represents a decrease of 120 from the 2020 Census. Despite this trend, the NJTPA predicts Teaneck Township's population to grow to 46,885 people in 2050.

**Table 10: Historic Population Growth**

| YEAR             | POPULATION | CHANGE       |
|------------------|------------|--------------|
| 1940             | 25,275     | N/A          |
| 1950             | 33,772     | 8,497        |
| 1960             | 42,085     | 8,313        |
| 1970             | 42,355     | 270          |
| 1980             | 39,007     | -3,348       |
| 1990             | 37,825     | -1,182       |
| 2000             | 39,260     | 1,435        |
| 2010             | 39,776     | 516          |
| 2020             | 41,246     | 1,470        |
| 2023             | 41,126     | -120         |
| 2050 (Predicted) | 46,885     | 5,759 (est.) |

Source: [NJ State Data Center, New Jersey Population Trends 1790 to 2000](#), [US Census Bureau; NJTPA, "Appendix E - 2050 Demographic Forecasts"](#)

#### Population Composition by Age

The estimated current median age in Teaneck Township is 37.9, compared to 42.1 for Bergen County and 40.1 for New Jersey.

**Table 11: Population by Age**

| AGE RANGE      | TEANECK TOWNSHIP | PERCENT | BERGEN COUNTY | PERCENT |
|----------------|------------------|---------|---------------|---------|
| Under 5 years  | 2,215            | 5.3     | 48,738        | 5.1     |
| 5 to 9 years   | 2,189            | 5.3     | 52,770        | 5.5     |
| 10 to 14 years | 3,054            | 7.4     | 61,465        | 6.4     |
| 15 to 19 years | 3,458            | 8.3     | 59,276        | 6.2     |



| AGE RANGE                                              | TEANECK TOWNSHIP | PERCENT | BERGEN COUNTY | PERCENT |
|--------------------------------------------------------|------------------|---------|---------------|---------|
| 20 to 24 years                                         | 3,529            | 8.5     | 54,219        | 5.7     |
| 25 to 34 years                                         | 4,685            | 11.3    | 109,077       | 11.4    |
| 35 to 44 years                                         | 4,698            | 11.3    | 128,544       | 13.5    |
| 45 to 54 years                                         | 5,169            | 12.5    | 133,870       | 14.0    |
| 55 to 59 years                                         | 2,931            | 7.1     | 69,969        | 7.3     |
| 60 to 64 years                                         | 2,111            | 5.1     | 66,441        | 7.0     |
| 65 to 74 years                                         | 4,253            | 10.2    | 96,442        | 10.1    |
| 75 to 84 years                                         | 2,369            | 5.7     | 50,615        | 5.3     |
| 85 years and over                                      | 838              | 2.0     | 23,291        | 2.4     |
| Median Age                                             | 37.9             | (X)     | 42.1          | (X)     |
| Source: American Community Survey <a href="#">2023</a> |                  |         |               |         |

### Households

According to the US Census Bureau's classification system, people either live in a household, housing unit, or in "group quarters." Two types of "households" exist: family and non-family. A "household" consists of one or more persons living and eating together separately from other persons who may be in the same building. A "family" is a household with two or more related persons living together in the same housing unit.

**Table 12: Population by Housing Type**

|                                                                                                                                          | TEANECK TOWNSHIP | BERGEN COUNTY |
|------------------------------------------------------------------------------------------------------------------------------------------|------------------|---------------|
|                                                                                                                                          | 2023             | 2023          |
| Total Housing Units                                                                                                                      | 13,851           | 368,535       |
| Average Household Size (Owner)                                                                                                           | 3.20             | 2.7           |
| Average Household Size (Renter)                                                                                                          | 2.49             | 2.7           |
| Householders Living Alone                                                                                                                | 3,758            | 92,860        |
| Source: American Community Survey <a href="#">2023</a> ; <a href="#">Census Reporter</a> ; U.S. <a href="#">Census Bureau QuickFacts</a> |                  |               |

### Immigration

Foreign born residents make up 26.6% percent of Teaneck Township's population, which is lower than County (31.4%) and higher than State (23.5%) levels. Less than half of Teaneck Township's foreign-born residents are not U.S. citizens, comprising 29.5% of the Township's foreign born population, a smaller share than that of Bergen County (33.6%) and the State (43.1%).

**Table 14: Residents Place of Birth**

|                              | TEANECK TOWNSHIP |         | BERGEN COUNTY |         | NEW JERSEY |         |
|------------------------------|------------------|---------|---------------|---------|------------|---------|
|                              | COUNT            | PERCENT | COUNT         | PERCENT | COUNT      | PERCENT |
| <b>Total</b>                 | 41,499           |         | 954,717       |         | 9,267,014  |         |
| <b>Born in United States</b> | 29,132           | 70.2    | 634,008       | 66.4    | 6,849,548  | 73.9    |
| <b>Foreign Born</b>          | 11,056           | 26.6    | 300,087       | 31.4    | 2,181,755  | 23.5    |
| <b>Naturalized Citizen</b>   | 7,789            | 70.5    | 199,247       | 66.4    | 1,241,100  | 56.9    |
| <b>Not a Citizen</b>         | 3,267            | 29.5    | 100,840       | 33.6    | 940,655    | 43.1    |

Source: American Community Survey [2023](#)

*Income and Poverty Status*

The median household income for Teaneck Township grew from 2023 to 2018, growing 22.5% and outpacing the County (16.3%) and the State (22.2%).

**Table 15: Household Median Income**

|                         | 2023    | 2018    | CHANGE | % CHANGE |
|-------------------------|---------|---------|--------|----------|
| <b>Teaneck Township</b> | 134,311 | 109,677 | 24,634 | 22.5     |
| <b>Bergen County</b>    | 116,709 | 100,361 | 16,348 | 16.3     |
| <b>New Jersey</b>       | 99,781  | 81,740  | 18,041 | 22.1     |

Source: American Community Survey [2023](#) and [2018](#); [ACS County Financial Characteristics](#)

In Teaneck Township, 2,249 residents (5.5%) live below the poverty line, same as 5.5% in 2018. In this regard, the Township had a different trajectory than Bergen County, which experienced a decrease from 6.9% to 6.6% in 2023.

**Table 16: Poverty Status**

| TEANECK TOWNSHIP           | 2023    | PERCENT | 2018    | PERCENT | CHANGE |
|----------------------------|---------|---------|---------|---------|--------|
| <b>Total Persons</b>       | 40,734  |         | 39,512  |         | 1,222  |
| <b>Total Below Poverty</b> | 2,249   | 5.5     | 2,165   | 5.5     | 0      |
| BERGEN COUNTY              | 2023    | PERCENT | 2018    | PERCENT | CHANGE |
| <b>Total Persons</b>       | 946,205 |         | 927,422 |         | 18,783 |
| <b>Total Below Poverty</b> | 61,987  | 6.6     | 64,303  | 6.9     | -0.3   |

Source: American Community Survey [2023](#) and [2018](#); [ACS County for Bergen and Teaneck](#)

## D. Multigenerational Housing Continuity

The analysis in this section shall satisfy Part G of P.L.1985, c.222 (C.52:27D-310), which requires:

- G) *“An analysis of the extent to which municipal ordinances and other local factors advance or detract from the goal of preserving multigenerational family continuity as expressed in the recommendations of the Multigenerational Family Housing Continuity Commission, adopted pursuant to paragraph (1) of subsection f. of section 1 of P.L.2021, c.273 (C.52:27D-329.20).”*

On November 8, 2021, the Senate and General Assembly of the State of New Jersey adopted C.52:27D-329.20<sup>9</sup>, which establishes the “Multigenerational Family Housing Continuity Commission” for the purpose of conducting research, obtaining public input, and adopting recommendations on how to most effectively advance the goal of enhancing multigenerational family housing continuity, which can be defined broadly as the degree to which senior citizens are able to reside at the homes of their extended families.

In short, the bill requires a municipal housing plan element to provide an analysis of the extent to which municipal ordinances and other local factors advance or detract from the goal of preserving multigenerational family continuity, as expressed in the recommendations of the commission.

Teaneck is committed to promoting intergenerational harmony through the provision of diverse housing options in a manner consistent with the regulation. As demonstrated in the above demographic and housing analysis, Teaneck is diversifying its housing stock as the size of owner-occupied households increases and housing units containing 20+ units increases, too. The municipality is employing a variety of approaches to accomplish this task, such as redevelopment plans that convert former commercial properties into housing. Strategies proposed or already implemented include the creation of family housing. The municipality, in setting forth its compliance plan, is abiding by the limitations included in the statute.

## E. Employment Data

The analysis in this section shall satisfy Part D of P.L.1985, c.222 (C.52:27D-310), which requires:

- C) *“An analysis of the existing and probable future employment characteristics of the municipality.”*

Below is a general growth prediction by NJTPA of Teaneck’s employment forecast in 2050.

**Table 17: Employment Projection**

| YEAR             | LABOR FORCE | CHANGE | ANNUALIZED % CHANGE |
|------------------|-------------|--------|---------------------|
| 2015             | 14,724      |        |                     |
| 2050 (Predicted) | 16,877      | 2,153  | 14.6                |

Source: [NJTPA](#)

<sup>9</sup> [https://pub.njleg.gov/Bills/2020/AL21/273\\_.HTM](https://pub.njleg.gov/Bills/2020/AL21/273_.HTM)

## IV. Fair Share Plan: Obligations and Compliance Plan

### A. Introduction

As noted, on March 20, 2024, Governor Murphy signed P.L. 2024, c.2 into law, which established a new framework for determining and enforcing municipalities' affordable housing obligations under the Mount Laurel doctrine and the Fair Housing Act. The Act sets forth the procedures for how New Jersey municipalities are assigned affordable housing obligations and how they may meet those obligations over a series of affordable housing "rounds." On July 1, 2025, the "Fourth Round" will begin and run for a ten-year period ending on June 30, 2035.

The Act required the Department of Community Affairs (the "DCA") to prepare a report with the calculation of the regional and municipal Prospective Need and the municipal Present Need for the Fourth Round in accordance with the formula required by the Amended Act. The DCA released a report entitled "Affordable Housing Obligations for 2025-2035 (Fourth Round)" on October 18, 2024 and concluded that Teaneck's fair share obligations for the Fourth Round included a Present Need of 214 units and a Prospective Need of 431 units.

In accordance with N.J.S.A. 52:27D-301 et seq. and the implementation schedule set forth in Directive #1424, the Township adopted Resolution 42-2025 on January 30, 2025 (See Appendix A), as part of its participation in the Affordable Housing Dispute Resolution Program (the "Program").

Resolution 42-2025 revised the Fourth Round affordable housing Prospective Need from 431 units to 384 units. These figures were derived from an analysis applying DCA's Land Capacity Factor methodology, which updated properties deemed unavailable for development due to environmental constraints, existing structural improvements, highway rights-of-way, and similar limitations not making the land "developable."

In response, the New Jersey Builders Association ("NJBA") filed a formal objection to the proposed adjustment. A case management conference was held on March 26, 2025 (Docket No. BER-L-776-25), during which the ruling favored adherence to the original DCA-issued obligation of 431 credits. As of the time of this Housing Element, no formal order has been issued from such decision, and the Township continues to reserve its right to appeal the determination.

As such, the Housing Element and Fair Share Plan is based on the original obligation of 431 affordable housing credits, as outlined by the New Jersey Department of Community Affairs (DCA) in its non-binding release of obligation figures in October 2024.

The purpose of the following sections is to set forth the Township of Teaneck's proposed approach to satisfying its Fourth Round obligation, where the Township Present Need or "Rehabilitation Obligation" is 214 credits, and the "Prospective Need" is 431 credits.

## B. Prior Round Need Compliance “Look Back” (2015-2025)

Teaneck has a history of fulfilling its affordable housing obligation. Most recently, on February 1, 2019, the Township received a Final Judgment of Compliance and Repose (“JCR”) relating to its Third Round obligation. The JCR was issued after a period of negotiation and settlement, primarily between the Township and Fair Share Housing Center (“FSHC”). During this period of negotiation, the Township adopted a [Third Round Housing Element](#) on February 6, 2019. The HEFSP and settlement agreements set forth the Township’s Third Round obligation and identified the actions required by the Township to fulfill these obligations. As demonstrated in the tables below and supported by the issuance of the JCR, the Township fully satisfied its obligations under the Third Round as articulated in its settlement with the FSHC. As such, no obligation is carried forward to the Fourth Round.

**Table 18: Projects Cited to Satisfy Third Round Realistic Development Potential (“RDP”)**

| ROUND 3 RDP PROJECT<br>(SEE ROUND 3 HEFSP, PG. 23-26)    | LMI<br>UNITS | STATUS                                                                                                                                                                                                                                                                                                                               |
|----------------------------------------------------------|--------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Surplus Units Carried from Prior Round                   | 22           | On-Going                                                                                                                                                                                                                                                                                                                             |
| Supportive Shared Housing                                | 28           | Completed                                                                                                                                                                                                                                                                                                                            |
| Teaneck Senior Citizens Addition                         | 18           | Completed                                                                                                                                                                                                                                                                                                                            |
| Single-Family Homes<br>(Bergen County Housing Authority) | 8            | Completed                                                                                                                                                                                                                                                                                                                            |
| The Brookdale                                            | 26           | Completed                                                                                                                                                                                                                                                                                                                            |
| 227 Teaneck Road                                         | 5            | Completed                                                                                                                                                                                                                                                                                                                            |
| 1775 Windsor Road (Avalon Bay)                           | 25           | Completed                                                                                                                                                                                                                                                                                                                            |
| 1500 Teaneck Road                                        | 23           | Completed                                                                                                                                                                                                                                                                                                                            |
| 1475 Palisade Avenue                                     | 10           | Completed                                                                                                                                                                                                                                                                                                                            |
| 140 State Street                                         | 5            | On December 13, 2022 the Township adopted <a href="#">Ordinance 49-2022</a> which adopted a Redevelopment Plan for 140 State Street for multifamily.<br><br>On February 11, 2025 the Township amended the Redevelopment Plan ( <a href="#">Ordinance 15-2025</a> ) which creates a concept for 10 affordable units (i.e. 5 surplus). |
| 764 New Bridge Road                                      | 2            | Completed                                                                                                                                                                                                                                                                                                                            |
| Bonus Credits                                            | 44           | On-Going                                                                                                                                                                                                                                                                                                                             |



**Table 19: Zoning Actions to Satisfy Third Round Unmet Need Requirements**

| ROUND 3<br>UNMET NEED<br>MECHANISM | REQUIREMENT<br>(SUMMARY BELOW. SEE FULL TEXT PER<br>ROUND 3 HEFSP, PG. 27-30)                                                                                                                                                                                                                      | CREDITS SUPPLIED / MADE<br>OPPORTUNITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Surplus<br>Credits                 | 40 surplus non-age restricted units from projects addressing the RDP, 24 age-restricted units from The Bookdale                                                                                                                                                                                    | Complete                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| Alfred Avenue<br>Rezoning          | <p>Rezone an 18-acre site (Block 6002, Lots 1-9) from L-I Light Industry to R-MO3 Residential-Multifamily 3 Overlay District.</p> <p>Permit densities up to 60 du/acre of non-age restricted units, which could yield about 150 to 200 affordable units depending on the tenure and set-aside.</p> | <p>Rezoned by <a href="#">Ord. No. 48-2015. on February 9, 2016.</a></p> <p>See R-MO3 standards at <a href="https://ecode360.com/38151638">https://ecode360.com/38151638</a>.</p> <p>329 Alfred Avenue / 1085 Decatur Avenue approved 38 affordable units via PB 2020-16</p> <p>359 Alfred Avenue approved 37 affordable units via PB 2022-20</p> <p><i>Ord. No. 14-2026, adopted on March 10, 2026, increased the mandatory affordable set-aside from 15% to 20% for remaining undeveloped properties.</i></p> |
| East Oakdene                       | <p>Rezone a 1.737-acre site from R-S Residential Single-Family / the B-2 Business-Office zone to R-RO Overlay (Residential-Rowhouse Overlay District).</p> <p>Permit up to 30 du/acre non-age restricted development and could yield approximately 10 affordable units.</p>                        | <p>Rezoned by <a href="#">Ord. No. 14-2017 on July 6, 2017.</a></p> <p>See full standards at <a href="https://ecode360.com/38151547">https://ecode360.com/38151547</a></p> <p><i>Ord. No. 14-2026, adopted on March 10, 2026, increased the mandatory affordable set-aside from 15% to 20%.</i></p>                                                                                                                                                                                                             |

| ROUND 3<br>UNMET NEED<br>MECHANISM          | REQUIREMENT<br>(SUMMARY BELOW. SEE FULL TEXT PER<br>ROUND 3 HEFSP, PG. 27-30)                                                                                                                                                                                                                                                                                                                                                                                                         | CREDITS SUPPLIED / MADE<br>OPPORTUNITY                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|---------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1405 Teaneck Road and 1425 Teaneck Road     | <p>Rezone sites from B-R Business-Residential zone to R-SCII Residential-Senior Housing II Zone.</p> <p>Permit up to 60 du/acre age restricted development and could yield approximately 10 affordable units.</p>                                                                                                                                                                                                                                                                     | <p>Rezoned by <a href="#">Ord. No. 15-2017 on July 6, 2017</a>.</p> <p>See full standards at <a href="https://ecode360.com/38151548">https://ecode360.com/38151548</a></p> <p>1425 Teaneck Road approved 40 senior affordable units on September 21, 2020</p> <p>Additionally, a AHTF contribution of \$900,000 was made on November 30, 2022.</p> <p><i>Ord. No. 14-2026, adopted on March 10, 2026, increased the mandatory affordable set-aside from 15% to 20% for 1405 Teaneck Road.</i></p> |
| Holuba                                      | Rezone a 6.75-acre site from L-I Light Industry District. Permit densities 12 du/acre non-age restricted development, which would yield approximately 16 affordable units.                                                                                                                                                                                                                                                                                                            | The “Holuba” soap factory townhouse development at 520 Palisades Ave has a Developer’s Agreement which requires 16 affordable units.                                                                                                                                                                                                                                                                                                                                                              |
| Township-wide mandatory set-aside ordinance | A multi-family or single-family attached development providing a minimum of five (5) new housing units created through any future municipal rezoning or Zoning Board action, use or density variance, redevelopment plan, or rehabilitation plan that provide for densities at or above six (6) units per acre is required to include an affordable housing set-aside of 20 percent if the affordable units will be for sale and 15 percent if the affordable units will be for rent. | <p>Adopted. See Appendix D.</p> <p><i>Ordinance No. 15-2026, adopted on March 16, 2026, repealed and replaced Chapter 33, Article VI with the State’s Model Ordinance, as required for consistency with the Uniform Housing Affordability Control Act. All projects with five or more housing units are required a 20% set-aside.</i></p>                                                                                                                                                         |

As demonstrated in the tables above and supported by the issuance of the JCR, the Township fully satisfied its obligations under the Third Round as articulated in its settlement with the FSHC. As such, no obligation is carried forward to the Fourth Round.

### **C. Present and Prospective Need Obligation (2025-2035)**

The analysis in this section shall satisfy Part E of P.L.1985, c.222 (C.52:27D-310), which requires:

- E) *“A determination of the municipality's present and prospective fair share for low- and moderate-income housing and its capacity to accommodate its present and prospective housing needs, including its fair share for low- and moderate-income housing, as established pursuant to section 3 of P.L.2024, c.2 (C.52:27D-304.1)”*

#### Present Need (Rehabilitation Share)

The Rehabilitation Share is described as “deficient housing units occupied by low- and moderate-income households within a municipality and is a component of “present need” under N.J.A.C. 5:93-1.3. In Teaneck Township, the rehabilitation obligation through the end of the Fourth Round (i.e. July 2035) has been determined to be 214.

Teaneck plans to continue its participation in Bergen County’s rehabilitation program. This program offers deferred payment loans to low- and moderate-income homeowners living in one- to three-family homes within the Bergen County Consortium.

Qualified homeowners may receive a zero-interest, 10-year deferred loan covering the cost of necessary rehabilitation work. The County Division of Housing and Community Development administers these loans through the Home Improvement Program, which markets the program, screens applicants, and manages the repair process.

The program will primarily serve owner-occupied units and address homes with lack of heat, lack of hot water, roof leaks, dangerous electrical problems, broken pipes, problems with sanitary facilities, and other housing conditions that threaten the health, safety, or well-being of the household members per COAH rules (N.J.A.C. 5:93). All rehabilitated units shall remain affordable to low- and moderate-income households for a period of at least 10 years (the control period). For owner-occupied units, the control period is enforced with a recorded lien; and for renter occupied units, the control period is enforced with a recorded deed restriction.

The Township has also endorsed the Bergen County CDBG program proposed by Advance Housing Inc. for Commonwealth Drive Sustainability (via Resolution 28-2025). This project will serve 3 homeless LMI individuals with rehabilitation repairs at a residence located on Commonwealth Drive in Teaneck (See Appendix J).

The Township also intends to program funding from the Affordable Housing Trust Fund to support rehabilitation of deficient housing units that are occupied by low- and moderate-income households, in accordance with the New Jersey State Housing Code, N.J.A.C. 5:28, or the requirements of the Rehabilitation Subcode, N.J.A.C. 5:23-6, as applicable. All qualifying project contributions will be amended in the Spending Plan accordingly.

Prospective Need Obligation

The Township has a **prospective need of 431 credits** for Round 4 (2015-2025).

However, as demonstrated in the completed Vacant Land Analysis found in **Appendix B**, the Township does not have enough suitable land to address the obligation. Therefore, the Township seeks a vacant land adjustment (“VLA”) under the COAH Second Round Rules (N.J.A.C. 5:93-4.2) and an adjustment of its Fourth Round new construction obligation to reflect the available and developable land area within its municipal boundaries. It is the conclusion of this analysis that the Realistic Development Potential (“RDP”) is 11 units.

In addition to vacant properties that have a realistic development potential, the Township must also consider known projects in its RDP assessment likely to be redeveloped in the 2025-2035 Fourth Round obligation. The Legislation includes the following language (emphasis added):

*Any municipality that receives an adjustment of its prospective need obligations for the fourth round or subsequent rounds based on a lack of vacant land shall as part of the process of adopting and implementing its housing element and fair share plan identify sufficient parcels likely to redevelop during the current round of obligations to address at least 25 percent of the prospective need obligation that has been adjusted, and adopt realistic zoning that allows for such adjusted obligation, or demonstrate why the municipality is unable to do so.*

With a Fourth Round prospective need of 431 credits and Realistic Development Potential of 11, this leaves a remaining need to be addressed of 420 credits. In accordance with the above, twenty-five percent of the remaining need is 105.

Realistic Development Potential (RDP) Mechanisms

The Township will address at least 25 percent of the prospective need obligation that has been adjusted through the following projects:

1. 140 State Street Amended Redevelopment Plan: **5 Credits\***

*\*Project previously planned at 36 units with 5 LMI set-aside in Round 3. Amended to 66 units with 10 LMI set-aside, where 5 new LMI units count towards Round 4*

2. Cedar Lane and American Legion Drive (Redevelopment)<sup>10</sup>: **48 Credits**
3. 143 State Street (Redevelopment): **9 Credits**
4. 827 Teaneck Road (Rezoning or Redevelopment): **6 Credits**

<sup>10</sup> The subject site also fronts Beverly Road, Garrison Avenue, Windsor Road, Alma Terrace, North Street, and Water Street. For the purposes of this HEFSP, the project is referred to as “Cedar Lane and American Legion Drive.” However, a future Redevelopment Plan may adopt a different name while still referring to the same designated block and lot numbers.

5. 1387 Hill Street (Rezoning or Redevelopment): 4 Credits
6. 54 West Englewood (Rezoning or Redevelopment): 11 Credits
7. Bonus Credits Under the Fourth Round: 41.5 Credits

Under N.J.S.A. [52:27D-311k](#), New Jersey updated the rules for bonus credits in Round 4<sup>11</sup>. Municipalities can now earn bonus credits in the following ways:

- a. One (1) bonus credit for special needs or permanent supportive housing;
- b. One (1) bonus credit for 100% affordable housing projects for which the host municipality has contributed towards the cost of the project, subject to certain minimum contribution requirements;
- c. One (1) bonus credit for market rate units that are converted to affordable units;
- d. One-half (0.5) bonus credit for ownership units created in a partnership sponsorship with a non-profit housing developer;
- e. One-half (0.5) bonus credit for units located within a one-half mile radius (or a one-mile radius for projects located in a Garden State Growth Zone) of NJ Transit or Port Authority rail, bus, or ferry stations, including all light rail stations;
- f. One-half (0.5) bonus credit for age-restricted units, subject to certain caps;
- g. One-half (0.5) bonus credit for each three-bedroom unit in excess of the three- bedroom requirements set forth in the Uniform Housing Affordability Controls;
- h. One-half (0.5) bonus credit for housing units constructed on previously developed land that was utilized for retail, office, or commercial space; and
- i. One-half (0.5) bonus credit for units whose affordability controls are extended for a new term of affordability;

The following are bonus credits applicable in Round Four:

| PROJECT                              | PROJECT NOTE                                                                                                       | BONUS CREDITS               |
|--------------------------------------|--------------------------------------------------------------------------------------------------------------------|-----------------------------|
| 140 State Street                     | This project will replace former gas station, where 5 new LMI units (beyond the original 5 in Round 3) are planned | + 2.5 Credits (per H above) |
| Cedar Lane and American Legion Drive | This project will replace former commercial buildings / commercial parking lots, where 48 LMI units are planned    | + 24 Credits (per H above)  |

<sup>11</sup> Note:

- A municipality may claim only one type of bonus credit per affordable unit
- Bonus credits may satisfy no more than 25% of the Round 4 obligation



| PROJECT               | PROJECT NOTE                                                                                 | BONUS CREDITS                  |
|-----------------------|----------------------------------------------------------------------------------------------|--------------------------------|
| 143 State Street      | This project will replace a gas station, where 9 LMI units are planned                       | + 4.5 Credits<br>(per H above) |
| 827 Teaneck Road      | This project will replace a commercial restaurant, where 6 LMI units are planned             | + 3 Credits<br>(per H above)   |
| 1387 Hill Street      | This project is located within ½ mile of NJ Transit Bus Stop, where 4 LMI units are planned  | + 2 Credits<br>(per E above)   |
| 54 West Englewood Ave | This project is located within ½ mile of NJ Transit Bus Stop, where 11 LMI units are planned | + 5.5 Credits<br>(per E above) |

*In addition to the above compliance mechanisms addressing the “25 percent of the adjusted prospective need obligation,” the Township has rezoned 822 Palisade Avenue to permit a density of 60 dwelling units per acre, with a mandatory 20% affordable housing set-aside.*

The following is a summary of the Round 4 Projects and bonus credits applicable in Round Four:

*Compliance Framework:*

| ROUND 4 COMPLIANCE FRAMEWORK                  | DCA OBLIGATION |
|-----------------------------------------------|----------------|
| Prospective Need Obligation                   | 431            |
| Realistic Development Potential (RDP) per VLA | 11             |
| "Likely to Redevelop" 25% Requirement         | 105            |
| Maximum Bonus Credits                         | 107.75         |

*Crediting Projects:*

| PROJECT SITE                         | B/L                                                                     | LMI UNITS                             | BONUS CREDIT TYPE               | BONUS CREDITS | W/ BONUS CREDITS |
|--------------------------------------|-------------------------------------------------------------------------|---------------------------------------|---------------------------------|---------------|------------------|
| 140 State Street Amended RDP         | Block 5004, Lot 1                                                       | 5                                     | TOD (0.5)                       | 2.5           | 7.5              |
| Cedar Lane and American Legion Drive | Block 819, Lots 1, 14, 16, 17; Block 707, Lots 1-5; Block 705, Lot 4.01 | 48                                    | TOD or Non-Res Conversion (0.5) | 24            | 72               |
| 143 State Street                     | Block 5002, Lot 26                                                      | 9                                     | TOD or Non-Res Conversion (0.5) | 4.5           | 13.5             |
| 827 Teaneck Road                     | Block 3902, Lot 2.01                                                    | 6                                     | TOD or Non-Res Conversion (0.5) | 3             | 9                |
| 1387 Hill Street                     | Block 5003, Lot 16                                                      | 4                                     | TOD (0.5)                       | 2             | 6                |
| 54 West Englewood Ave                | Block 4905, Lots 1, 2 and 3                                             | 11                                    | TOD (0.5)                       | 5.5           | 16.5             |
| 822 Palisade Ave                     | Block 2603, Lot 21                                                      | <i>"Passive" Rezoning of 60 DU/AC</i> |                                 |               |                  |
| Total:                               |                                                                         |                                       |                                 |               | 124.5            |

*Unmet Need:*

| CREDITS                                      | CREDITS         |
|----------------------------------------------|-----------------|
| Prospective Need Obligation                  | - 431 Credits   |
| Credits Toward 4 <sup>th</sup> Round 25% VLA | - 124.5 Credits |
| REMAINING UNMET NEED CREDITS                 | 306.5 Credits   |

**Figure 3: Prospective Need Projects Maps**



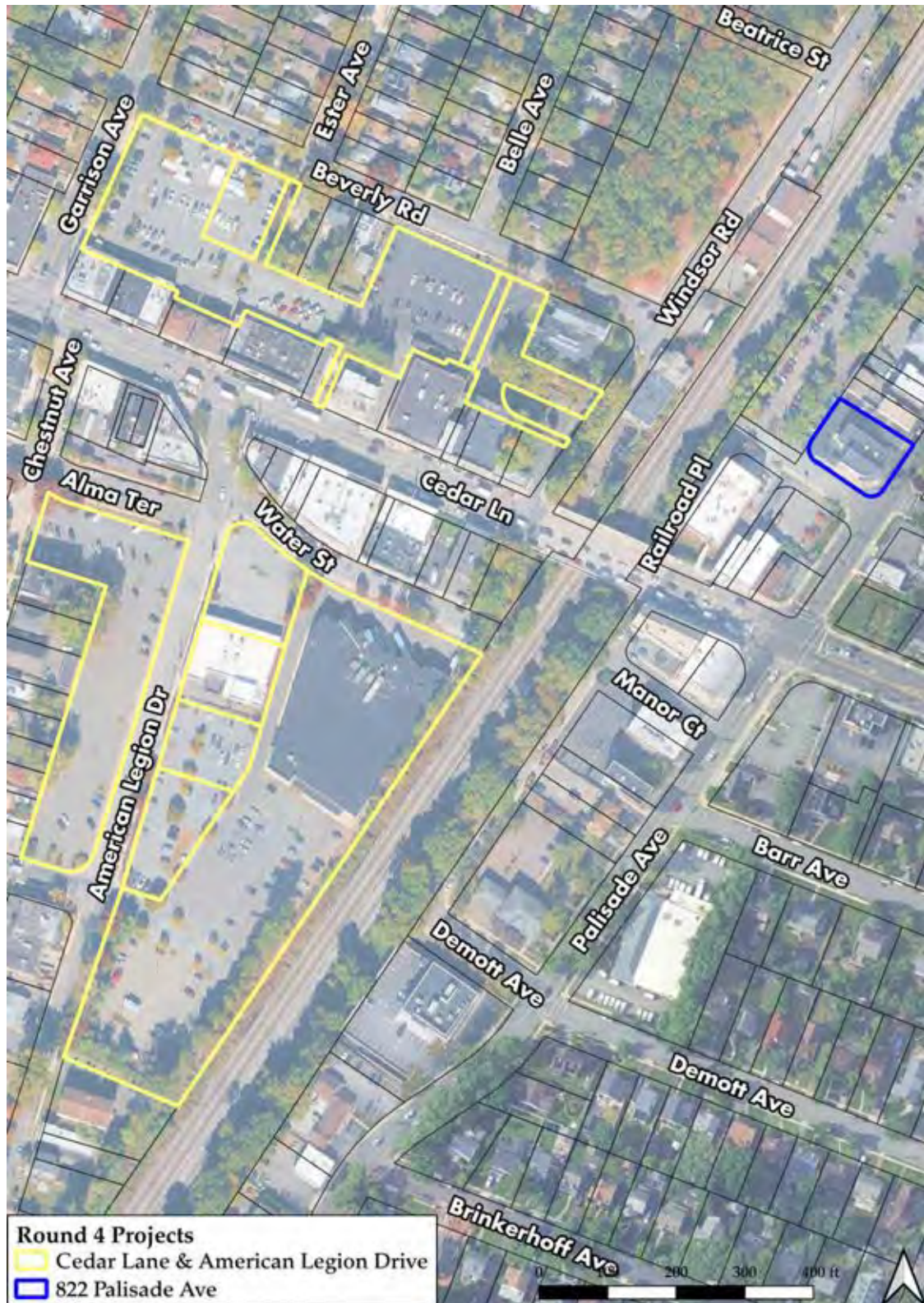












*Prospective Need Projects Description and Suitability Analysis*

Municipalities shall designate sites that are available, suitable, developable and approvable, as defined in N.J.A.C. 5:93-1. As such, the criteria for crediting units must meet the following:

1. "Available site" – a site with clear title, free of encumbrances which preclude development for low- and moderate-income housing.
2. "Suitable site" – a site that is adjacent to compatible land uses, has access to appropriate streets and is consistent with the environmental policies delineated in N.J.A.C. 5:93-4.
3. "Developable site" – a site that has access to appropriate water and sewer infrastructure, and is consistent with the applicable area wide water quality management plan (including the wastewater management plan) or is included in an amendment to the area wide water quality management plan submitted to and under review by DEP.
4. "Approvable site" – a site that may be developed for low- and moderate-income housing in a manner consistent with the rules or regulations of all agencies with jurisdiction over the site. A site may be approvable although not currently zoned for low- and moderate-income housing.

Based on the below, the following crediting sites can appropriately be included in the Township's Fourth Round HEFSP.

**Table 20: Projects Description and Suitability Analysis**

*As of March 2026, all implementing rezoning/redevelopment ordinances have been adopted*

| 140 STATE STREET (REDEVELOPMENT - AMENDED JANUARY 2025)           |                                                                                                                                                                                           |
|-------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Description of Availability                                       | The site is owned by a Developer with clear title.                                                                                                                                        |
| Description of Suitable                                           | The Redevelopment Area is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center. |
| Description of Developable                                        | The Redevelopment Area is developable. It has access to infrastructure necessary to support development.                                                                                  |
| Description of Approvable                                         | The Redevelopment Area is approvable. It has an adopted redevelopment plan in place.                                                                                                      |
| CEDAR LANE, AMERICAN LEGION DRIVE, ET AL. (REDEVELOPMENT PLANNED) |                                                                                                                                                                                           |
| Description of Availability                                       | The site is owned by a Developer with clear title.                                                                                                                                        |
| Description of Suitable                                           | The property is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center.           |

|                                                             |                                                                                                                                                                                 |
|-------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Description of Developable                                  | The site is developable. It has access to infrastructure necessary to support development.                                                                                      |
| Description of Approvable                                   | The site is approvable. The Township commits to a Redevelopment Plan and/or rezoning to permit the residential affordable housing.                                              |
| <b>143 STATE STREET (REDEVELOPMENT OR REZONING PLANNED)</b> |                                                                                                                                                                                 |
| Description of Availability                                 | The site is owned by a Developer with clear title.                                                                                                                              |
| Description of Suitable                                     | The property is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center. |
| Description of Developable                                  | The site is developable. It has access to infrastructure necessary to support development.                                                                                      |
| Description of Approvable                                   | The site is approvable. The Township commits to a Redevelopment Plan and/or rezoning to permit the residential affordable housing.                                              |
| <b>827 TEANECK ROAD (REDEVELOPMENT OR REZONING PLANNED)</b> |                                                                                                                                                                                 |
| Description of Availability                                 | The site is owned by a Developer with clear title.                                                                                                                              |
| Description of Suitable                                     | The property is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center. |
| Description of Developable                                  | The site is developable. It has access to infrastructure necessary to support development.                                                                                      |
| Description of Approvable                                   | The site is approvable. The Township commits to a Redevelopment Plan and/or rezoning to permit the residential affordable housing.                                              |
| <b>1387 HILL STREET (REDEVELOPMENT OR REZONING PLANNED)</b> |                                                                                                                                                                                 |
| Description of Availability                                 | The site is owned by a Developer with clear title.                                                                                                                              |
| Description of Suitable                                     | The property is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center. |



|                                                                  |                                                                                                                                                                                        |
|------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Description of Developable                                       | The site is developable. It has access to infrastructure necessary to support development.                                                                                             |
| Description of Approvable                                        | The site is approvable. The Township commits to a Redevelopment Plan and/or rezoning to permit the residential affordable housing.                                                     |
| <b>54 WEST ENGLEWOOD AVE (REDEVELOPMENT OR REZONING PLANNED)</b> |                                                                                                                                                                                        |
| Description of Availability                                      | The site is owned by a Developer with clear title.                                                                                                                                     |
| Description of Suitable                                          | The property is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center.        |
| Description of Developable                                       | The site is developable. It has access to infrastructure necessary to support development.                                                                                             |
| Description of Approvable                                        | The site is approvable. The Township commits to a Redevelopment Plan and/or rezoning to permit the residential affordable housing.                                                     |
| <b>822 PALISADE AVENUE (REZONING)</b>                            |                                                                                                                                                                                        |
| <i>Description of Availability</i>                               | <i>The site is available to the Owner who may wish to redevelop.</i>                                                                                                                   |
| <i>Description of Suitable</i>                                   | <i>The property is suitable. It is near a variety of residential and commercial uses. It contains access to bus routes, parks, sidewalk pedestrian access, and a built-out center.</i> |
| <i>Description of Developable</i>                                | <i>The site is developable. It has access to infrastructure necessary to support development.</i>                                                                                      |
| <i>Description of Approvable</i>                                 | <i>The site is approvable. The Township has rezoned the project to permit the residential affordable housing.</i>                                                                      |

### Land Most Appropriate for Affordable Housing

The analysis in this section shall satisfy Part F of P.L.1985, c.222 (C.52:27D-310), which requires:

- F) "A consideration of the lands that are most appropriate for construction of low- and moderate-income housing and of the existing structures most appropriate for conversion to, or rehabilitation for, low- and moderate-income housing, including a consideration of lands of developers who have expressed a commitment to provide low- and moderate-income housing"

As part of this Fair Share Plan, the Township has considered land that is appropriate for the construction of very low-, low-, and moderate-income housing. By utilizing various zoning mechanisms, the Township has successfully met its affordable housing obligations and continues to facilitate the creation of such housing. The Township has amended zoning



regulations to establish affordable and inclusionary housing districts. Furthermore, the adoption of a mandatory set-aside ordinance guarantees that unexpected opportunities for affordable housing are utilized. The Township considers the strategies outlined in this document to be the most effective approach to meeting its affordable housing needs. While it acknowledges that developers may propose additional sites in the future that could be suitable for affordable housing, no further sites are currently required to fulfill the Township's obligations.

#### Endorsement of Affordable Housing Compliance Mechanisms

The Township acknowledges that, in accordance with affordable housing regulations, it may be eligible to receive credit toward its affordable housing obligation through alternative mechanisms. This includes extending existing affordability controls by re-deed restricting units in compliance with Uniform Housing Affordability Controls (UHAC) standards; deed-restricting approved Accessory Dwelling Units (ADUs) in accordance with UHAC; and/or exploring the potential to qualify units regulated under municipal rent control ordinances. The Township encourages these approaches and considers them viable strategies to support continued compliance with affordable housing obligations.

#### Mandatory Obligation Subsets

Below is a table reviewing additional obligation requirement thresholds.

| MANDATORY OBLIGATIONS                                                                                                                                                                                                                           | CITATION                     | # REQUIRED OF ACTUAL UNITS* | PROPOSED                                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|-----------------------------|------------------------------------------------------------------|
| Very Low-Income Units (13% Minimum)<br><br><i>Shall count towards the minimum 50 percent of the housing units required to be made available for occupancy by low-income households to address a municipality's prospective need obligation.</i> | <a href="#">52:27D-329.1</a> | 11<br>(Rounded Up)          | Projects will comply with UHAC Requirements for LMI requirements |
| Family VLI Units<br>(50% Minimum of VLI Units)                                                                                                                                                                                                  | <a href="#">52:27D-329.1</a> | 6<br>(Rounded Up)           |                                                                  |
| Low-Income Units (50% Minimum)<br><br><i>Conversely, the maximum of Moderate-Income Units shall not exceed 50%.</i>                                                                                                                             | <a href="#">52:27D-329.1</a> | 42<br>(Rounded Up)          |                                                                  |
| Family Units (50% Minimum)                                                                                                                                                                                                                      | <a href="#">52:27D-311.1</a> | 42<br>(Rounded Up)          | All 83 physical units                                            |

|                                                                                                                                           |                                |                      |                                                                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------|----------------------|--------------------------------------------------------------------------------------------------|
| Rental Units (25% Minimum)                                                                                                                | <a href="#">52:27D-311.l</a>   | 21<br>(Rounded Up)   | are Family<br>Rental                                                                             |
| Family Rental Units<br>(50% Minimum of Rental Units)                                                                                      | <a href="#">52:27D-311.k.5</a> | 11 (Rounded Up)      |                                                                                                  |
| Age-restricted units (30% Maximum)                                                                                                        | <a href="#">52:27D-302.q</a>   | 24<br>(Rounded Down) | None of the<br>83 physical<br>units are<br>senior or<br>transitional<br>proposed at<br>this time |
| Transitional Housing<br>(10% Maximum of Total Credits)                                                                                    | <a href="#">52:27D-311.e</a>   | 8<br>(Rounded Down)  |                                                                                                  |
| Age-Restricted Housing Bonus Credit<br>(10% Maximum of Age-Restricted<br>Units)                                                           | <a href="#">52:27D-311.k.4</a> | 8<br>(Rounded Down)  |                                                                                                  |
| <i>* Based on 83 actual units that do not count the 41.5 bonus credits.</i>                                                               |                                |                      |                                                                                                  |
| <i>Note 1: Maximum bonus credits shall not exceed 25% of Prospective Need per 52:27D-311.k.</i>                                           |                                |                      |                                                                                                  |
| <i>Note 2: Targets based on required units and will be enforced throughout the Fourth Round as part of site plan review and approval.</i> |                                |                      |                                                                                                  |

## V. Appendices

- A. Regulatory Resolutions (Adopting Obligation Number)
- B. Vacant Land Adjustment
- C. Zoning Amendments (or redevelopment plans, if applicable) – *Updated in 2026*
- D. Affordable Housing, *Developer Fee, Affirmative Marketing, and Administrative Agent Omnibus* Ordinance – *Updated in 2026*

~~The Township's existing ordinance is attached and will remain in full force and effect during the Fourth Round. The Township will make all necessary modifications to this ordinance to comply with any forthcoming Fourth Round requirements as updated regulations and rules are released.~~

- E. ~~Development Fee Ordinance~~ – *Former Appendix E merged into Appendix D*

~~The Township's existing ordinance is attached and will remain in full force and effect during the Fourth Round. The Township will make all necessary modifications to this ordinance to comply with any forthcoming Fourth Round requirements as updated regulations and rules are released.~~

- F. Affirmative Marketing Plan

~~The Township's existing Affirmative Marketing Plan is attached and will remain in full force and effect during the Fourth Round. The Township will make all necessary modifications to this ordinance to comply with any forthcoming Fourth Round requirements as updated regulations and rules are released.~~

- G. Spending Plan

- H. Resolution of intent to fund cost of municipality's municipally sponsored affordable housing development as well as its rehabilitation program

- I. Copies of resolutions appointing Administrative Agent(s) ~~and ordinance creating the position of~~ and appointing the Municipal Affordable Housing Liaison

~~The Township's existing appointing resolutions and ordinances are attached and will remain in full force and effect during the Fourth Round. The Township will make all necessary modifications to these resolutions and ordinances to comply with any forthcoming Fourth Round requirements as updated regulations and rules are released.~~

- J. CDBG Rehabilitation Project Endorsement

- K. *May 19, 2026 Council Endorsement of Housing Element and Fair Share Plan*